CYNTHIA G. LAWRENCE (SBN 148927)
BRYAN L. MALONE (SBN 144082)
BLAZE VAN DINE (SBN 251946)
SIMS, LAWRENCE & BROGHAMMER
1478 Stone Point Drive, Suite 450
Roseville, CA 95661
Telephone: (916) 797-8881
Facsimile: (916) 253-1544
Email: cynthia@sims-law.net
bryan@sims-law.net
blaze@sims-law.net
SLB@sims-law.net

Attorneys for Defendant
KATIE PALACIOS and
HOPE PROGRAM, A LICENSED CLINICAL SOCIAL WORKER PROFESSIONAL CORPORATION (sued and served as The Hope Program)

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF SAN JOAQUIN

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| BRENDAN NGEHSI NEWANFORBI,<br><br>Plaintiff,<br><br>v.<br><br>KATIE PALACIOS, Clinical Director, HOPE Program (Stockton, California), an individual; HOPE PSYCHOTHERAPY, INC., d/b/a HOPE PROGRAM, a California corporation; and DOES 1-10, inclusive,<br><br>Defendants. | Case No.: STK-CV-UF-2026-0001032<br><br>**DEFENDANT HOPE PROGRAM, A LICENSED CLINICAL SOCIAL WORKER PROFESSIONAL CORPORATION'S RESPONSES TO PLAINTIFF'S SPECIAL INTERROGATORIES, SET ONE**<br><br>Complaint Filed: February 10, 2026<br>Trial Date: TBD |

**PROPOUNDING PARTY: Plaintiff BRENDAN NGEHSI NEWANFORBI**

**RESPONDING PARTY: Defendant HOPE PROGRAM, A LICENSED CLINICAL SOCIAL WORKER PROFESSIONAL CORPORATION**

**SET NO: ONE**

Defendant HOPE PROGRAM, A LICENSED CLINICAL SOCIAL WORKER PROFESSIONAL CORPORATION ("HOPE" or "Defendant" or "Respondent") hereby objects and

responds to Plaintiff BRENDAN NGEHSI NEWANFORBI's ("Propounding Party") Special Interrogatories, Set One, as follows:

**PRELIMINARY STATEMENT**

The following responses are made solely for the purpose of this pending action. Documents eventually produced in response to the Special Interrogatories and any individual request therein, are subject to admissibility, as well as to any and all other objections on any grounds that would require the exclusion of any statement therein if the information were introduced in court. All objections and grounds for such objections are expressly reserved and may be interposed at the time of any motion or trial.

These responses are based on discovery available as of the date hereof. Discovery is continuing, and these responses are accordingly subject to revision. Further discovery, independent investigation, and analysis may supply additional facts and add meaning to known facts, as well as establish entirely new factual conclusions and legal contentions, all of which may lead to additions, changes to, or variations from the information set forth herein. These responses are given without prejudice to Defendant's right to produce, respond, or rely on subsequently discovered information, facts, or documents. Defendant accordingly reserves the right to change the response herein as additional facts are ascertained, analysis is made, legal research is completed, and contentions are made. The responses contained herein are made in a good faith effort to comply with the provisions of the California Rules of Civil Procedure but are in no way deemed to prejudice Defendant with respect to further discovery, research, and analysis.

**RESPONSES TO SPECIAL INTERROGATORIES, SET ONE**

**SPECIAL INTERROGATORY NO. 1:**

IDENTIFY each PERSON employed by, contracted with, or otherwise acting on behalf of HOPE who, during the RELEVANT PERIOD, provided treatment to PLAINTIFF, supervised PLAINTIFF's treatment, attended any CTM concerning PLAINTIFF, or had authority to determine PLAINTIFF's phase progression or treatment-completion status.

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**RESPONSE TO SPECIAL INTERROGATORY NO. 1**

Responding Party objects to this interrogatory generally on the basis that it is not full and complete in and of itself as required by California Code of Civil Procedure § 2030.060. Pursuant to § 2030.060, no preface or instruction can be included with a set of interrogatories. Responding Party objects to this Request on the grounds that this request is vague and ambiguous as to the phrases "treatment", "supervised", and "treatment-completion status." Responding Party objects that this request is overbroad and burdensome in time and/or scope and therefore seeks information that is not reasonably related to lead to the discovery of admissible evidence. Responding Party objects to the extent this request seeks to invade the attorney work product privilege, attorney client privilege and seeks information protected by Code of Civil Procedure § 2034.010 et seq. Responding Party further objects to the extent this request calls for a legal conclusion and/or expert opinion. Responding Party also objects that this request is compound and disjunct and improperly joins multiple distinct inquiries into a single question, making it difficult to provide a complete and accurate response to each component.

Subject to and without waiving the above objections, Responding Party responds as follows: Kristine Hansen, Director of Quality and Compliance; Katie Palacios, Clinical Director, Bernadette Marie Tassone, Clinician II; Cristina Loree, Executive Director of Training and Development; Pamela Akins, Clinician II. Discovery is ongoing and Responding Party reserves the right to supplement this response pursuant to CCP §2031.280.

**SPECIAL INTERROGATORY NO. 2:**

For each PERSON identified in response to Interrogatory No. 1, state the dates of employment, the position(s) held, and a description of that PERSON's supervisory relationship to PALACIOS.

**RESPONSE TO SPECIAL INTERROGATORY NO. 2:**

Responding Party objects to this interrogatory generally on the basis that it is not full and complete in and of itself as required by California Code of Civil Procedure § 2030.060. Pursuant to § 2030.060, no preface or instruction can be included with a set of interrogatories. Plaintiff has included an "instructions" and "definitions" preface which Responding Party herein disregards as in

violation of § 2030.060. Responding Party objects to this Request on the grounds that this request is vague and ambiguous as to the phrase "supervisory relationship." Responding Party objects that this request is overbroad and burdensome in time and/or scope and therefore seeks information that is not reasonably related to lead to the discovery of admissible evidence. Responding Party further objects to the extent this request calls for a legal conclusion and/or expert opinion. Responding Party objects to the extent this request seeks to invade the attorney work product privilege, attorney client privilege and seeks information protected by Code of Civil Procedure § 2034.010 et seq. Responding Party objects further to this interrogatory as it seeks to violate a third party's right of privacy in violation of the California Constitution, Article One, Section One as well as the US Constitution, see *Griswold v. Connecticut* (1965) 381 US 479, 484. See also, *Britt v. Superior Court* (1978) 20 Cal.3d 844. Responding Party further objects to the extent this request calls for a legal conclusion and/or expert opinion. Responding Party also objects that this request is compound and conjunct and improperly joins multiple distinct inquiries into a single question, making it difficult to provide a complete and accurate response to each component.

Subject to and without waiving the above objections, Responding Party responds as follows:

Persons identified above were employed in their stated positions during the RELEVANT PERIOD. None of the persons identified above supervised PALACIOS.

**SPECIAL INTERROGATORY NO. 3:**

IDENTIFY each PERSON who drafted, reviewed, approved, or signed any FORM 3043 or FORM 1502-DR concerning PLAINTIFF during the RELEVANT PERIOD, and for each such DOCUMENT, state the date of preparation, the dates of all draft and final versions, and the date of transmission to CDCR.

**RESPONSE TO SPECIAL INTERROGATORY NO. 3:**

Responding Party objects to this interrogatory generally on the basis that it is not full and complete in and of itself as required by California Code of Civil Procedure § 2030.060. Pursuant to § 2030.060, no preface or instruction can be included with a set of interrogatories. Responding Party also objects that this discovery request is so broad and unlimited as to time, scope, and manner as to be an unwarranted annoyance, embarrassment, and is oppressive. The request is vague and

ambiguous as to the phrase "date of preparation", "reviewed," and "approved." Responding Party objects that this discovery request seeks the production of documents protected by the attorney-work-product privilege in violation of Code of Civil Procedure sections 2018.020 and 2018.030 and a third party's right of privacy in violation of the California Constitution, Article One, Section One as well as the US Constitution, see *Griswold v. Connecticut* (1965) 381 US 479, 484. See also, *Britt v. Superior Court* (1978) 20 Cal.3d 844. Responding Party also objects that this request is compound, conjunct, disjunct, and improperly joins multiple distinct inquiries into a single question, making it difficult to provide a complete and accurate response to each component.

Subject to and without waving the above objections, Responding Party Responds as follows:

CDCR FORM 3043 and FORM 1502-DR are CDCR forms created by CDCR and retained by CDCR.

**SPECIAL INTERROGATORY NO. 4:**

IDENTIFY each PERSON who, at any time during the RELEVANT PERIOD, held the position of Site Director, Clinical Director, Compliance Officer, Records Custodian, or comparable supervisory or administrative position at the STOCKTON FACILITY.

**RESPONSE TO SPECIAL INTERROGATORY NO. 4:**

Responding Party objects to this interrogatory generally on the basis that it is not full and complete in and of itself as required by California Code of Civil Procedure § 2030.060. Pursuant to § 2030.060, no preface or instruction can be included with a set of interrogatories. Objection: This discovery request is so broad and unlimited as to time and scope as to be an unwarranted annoyance, embarrassment, and is oppressive. The request is vague and ambiguous as to the phrase "date of preparation." Responding Party objects that this discovery request seeks the production of documents protected by the attorney-work-product privilege in violation of Code of Civil Procedure sections 2018.020 and 2018.030 and a third party and employee's right of privacy in violation of the California Constitution, Article One, Section One as well as the US Constitution, see *Griswold v. Connecticut* (1965) 381 US 479, 484. See also, *Britt v. Superior Court* (1978) 20 Cal.3d 844. Responding Party also objects that this request is compound, conjunct, disjunct, and improperly joins multiple distinct inquiries into a single question, making it difficult to provide a complete and accurate response to

each component.

Subject to and without waiving the above objections, Responding Party responds as follows: Kristine Hansen, Director of Quality and Compliance; Katie Palacios, Clinical Director. Responding Party does not have a Site Director or Records Custodian.

**SPECIAL INTERROGATORY NO. 5:**

IDENTIFY each member of HOPE's executive leadership, board of directors, or managing agents during the RELEVANT PERIOD, including the Executive Director of Clinical Training (Dr. Cristina Loree), and state the dates each held that position.

**RESPONSE TO SPECIAL INTERROGATORY NO. 5:**

Responding Party objects to this interrogatory generally on the basis that it is not full and complete in and of itself as required by California Code of Civil Procedure § 2030.060. Pursuant to § 2030.060, no preface or instruction can be included with a set of interrogatories. Objection: This discovery request is so broad and unlimited as to time and scope as to be an unwarranted annoyance, embarrassment, and is oppressive. The request is vague and ambiguous as to the phrases "executive leadership", and "managing agents". Responding Party objects that this request violates third party and employee's right of privacy in violation of the California Constitution, Article One, Section One as well as the US Constitution, see *Griswold v. Connecticut* (1965) 381 US 479, 484. See also, *Britt v. Superior Court* (1978) 20 Cal.3d 844. Responding Party also objects that this request is compound, conjunct, disjunct, and improperly joins multiple distinct inquiries into a single question, making it difficult to provide a complete and accurate response to each component.

Subject to and without waiving the above objections, Responding Party responds as follows: During the RELEVANT PERIOD, Kristine Hansen, Director of Quality and Compliance; Katie Palacios, Clinical Director; Cristina Loree, Executive Director of Training and Development; Dr. Carrie Shinske, Executive Director, Clinical Operations; Dr. Drew Kingston, Chief Clinical Officer.

**SPECIAL INTERROGATORY NO. 6:**

IDENTIFY each parolee enrolled in HOPE's SOMP at the STOCKTON FACILITY at any time during the RELEVANT PERIOD whom HOPE determined to have "completed," "graduated from," or otherwise successfully concluded sex-offender treatment prior to that parolee's discharge

from parole, and for each such parolee state: (a) the date of the completion determination; (b) the HOPE clinician who made the determination; (c) the parolee's parole-discharge date; and (d) the phase of treatment in which completion occurred. (Plaintiff seeks anonymized identifiers (e.g., Client A, Client B); names are not required.)

**RESPONSE TO SPECIAL INTERROGATORY NO. 6:**

Responding Party objects to this interrogatory generally on the basis that it is not full and complete in and of itself as required by California Code of Civil Procedure § 2030.060. Pursuant to § 2030.060, no preface or instruction can be included with a set of interrogatories. Responding Party also objects to this interrogatory on the grounds that it calls for information potentially in violation of third-party privacy rights guaranteed under the United States Constitution and Article I, Section I of the California Constitution. *See Younger v. Berkeley City Council* (1975) 45 Cal.App.3d 825, 832. Responding Party objects that this request is overbroad and burdensome in time and/or scope and therefore seeks information that is not reasonably related to lead to the discovery of admissible evidence. Responding Party further objects to the extent this request calls for a legal conclusion and/or expert opinion Responding Party objects to the extent this request seeks to invade the attorney work product privilege, attorney client privilege and seeks information protected by Code of Civil Procedure § 2034.010 et seq.

Pursuant to the above objections, Responding Party cannot and will not respond to this special interrogatory.

**SPECIAL INTERROGATORY NO. 7:**

Describe in detail every written or unwritten policy, practice, protocol, or guideline in effect at any time during the RELEVANT PERIOD governing the determination of when a parolee enrolled at the STOCKTON FACILITY may be deemed to have completed sex-offender treatment, including: (a) the effective dates of each such policy; (b) all clinical criteria considered; (c) the relative weight assigned to each criterion; and (d) whether parole-discharge status is a factor.

**RESPONSE TO SPECIAL INTERROGATORY NO. 7:**

Responding Party objects to this interrogatory generally on the basis that it is not full and complete in and of itself as required by California Code of Civil Procedure § 2030.060. Pursuant to

§ 2030.060, no preface or instruction can be included with a set of interrogatories. Responding Party objects to this Request on the grounds that this request is vague and ambiguous as to the phrase, "did not permit," and unintelligible as phrased. Responding Party objects that this request is overbroad and burdensome in time and/or scope and therefore seeks information that is not reasonably related to lead to the discovery of admissible evidence. Responding Party further objects to the extent this request calls for a legal conclusion and/or expert opinion.

Subject to and without waiving the above objections, Responding Party responds as follows:

a. As of October 2024, criteria for treatment termination can be found in Penal Code § 3008 and 15 C.C.R. § 3574. Prior to October of 2024, CDCR policy required supervised persons to continue some form of treatment as part of the "aftercare" phase of treatment at least until they were discharged from parole.

b. Clinical criteria considered:

1. Completion of HOPE curriculum (Phase 1 and Phase 2) and associated homework assignments: The client has successfully completed all modules and homework assignments prior to titrating (e.g., HRSO to non-HRSO; non-HRSO to maintenance).

2. Completion and documentation of all homework assignments: The client has completed all associated homework assignments. Homework completion is based on two primary criteria. First, participants must complete the assigned homework in full, as per the instructions for that specific assignment. Quality and degree of completion is determined in line with the specific abilities of the participant (e.g., cognitive abilities). Second, participants must present their homework in session and participate in related group discussion.

3. Appropriate behavior in group treatment: The client is demonstrating appropriate behavior in group, including good attendance and participation. The client has worked towards becoming a role model in group, is sharing about personal issues, is able to both appropriately challenge others in the group, and accepts being challenged with a lack of defensiveness and an open mind. The client demonstrates good communication and conflict resolution skills in group.

4. Measurable decrease in risk to re-offend: Over the course of treatment, risk scores on applicable dynamic risk instruments are shown to decrease.

5. Polygraph: Completion of a non-deceptive maintenance polygraph that targets areas of risk for the client (unauthorized contact with minors, use of pornography, etc.).

6. Full compliance with all conditions of supervision: This includes compliance with all conditions of supervision and includes treatment compliance (e.g., good attendance; active participation in

treatment; demonstrated understanding of individual risk factors, and knowledge of effective coping strategies).

c. All items are weighed equally.

d. No.

**SPECIAL INTERROGATORY NO. 8:**

State whether HOPE's four-phase program structure (preparatory, core, maintenance, aftercare) treats the aftercare phase as mandatory for parolees during the period of active parole supervision and as voluntary only after parole discharge. If yes, IDENTIFY all DOCUMENTS reflecting that distinction. If no, describe in detail the basis for the distinction between parolee and non-parolee participants in the aftercare phase.

**RESPONSE TO SPECIAL INTERROGATORY NO. 8:**

Responding Party objects to this interrogatory generally on the basis that it is not full and complete in and of itself as required by California Code of Civil Procedure § 2030.060. Pursuant to § 2030.060, no preface or instruction can be included with a set of interrogatories. Responding Party objects to this Request on the grounds that this request is vague and ambiguous as to the phrase "after parole discharge." Responding Party also objects that this request is overbroad and burdensome in time and/or scope and therefore seeks information that is not reasonably related to lead to the discovery of admissible evidence. Responding Party further objects to the extent this request calls for a legal conclusion and/or expert opinion. Responding Party objects to the extent this request seeks to invade the attorney work product privilege, attorney client privilege and seeks information protected by Code of Civil Procedure § 2034.010 et seq.

Subject to and without waiving the above objections, Responding Party responds as follows: Aftercare Phase is a voluntary phase in the format of a support group with the sex offender treatment provider. Supervised persons (parolees) who have successfully completed the curriculum and maintenance phase and persons who have been discharged from parole supervision (non-parolees) may voluntarily participate in the Aftercare Phase.

**SPECIAL INTERROGATORY NO. 9:**

State the objective, measurable clinical criteria used by HOPE to advance any parolee from each

phase to the next (preparatory to core; core to maintenance; maintenance to aftercare), and IDENTIFY all DOCUMENTS reflecting those criteria.

**RESPONSE TO SPECIAL INTERROGATORY NO. 9:**

Responding Party objects to this interrogatory generally on the basis that it is not full and complete in and of itself as required by California Code of Civil Procedure § 2030.060. Pursuant to § 2030.060, no preface or instruction can be included with a set of interrogatories. Responding Party objects to this Request on the grounds that this request is vague and ambiguous as to the term "measurable". Responding Party also objects that this request is overbroad and burdensome in time and/or scope and therefore seeks information that is not reasonably related to lead to the discovery of admissible evidence. Responding Party objects to the extent this request seeks to invade the attorney work product privilege, attorney client privilege and seeks information protected by Code of Civil Procedure § 2034.010 et seq.

Subject to and without waiving the above objections, Responding Party responds as follows: Objective, measurable clinical criteria include, but are not limited to, Level of Service Case Management Inventory scores, Stable-2007 scores, polygraph examination results, completion of HOPE curriculum, completion of homework assignments, scores on applicable dynamic risk instruments, compliance with conditions of supervision.

**SPECIAL INTERROGATORY NO. 10:**

IDENTIFY each PERSON who participated in drafting, approving, or revising HOPE's treatment-completion criteria for parolees during the RELEVANT PERIOD.

**RESPONSE TO SPECIAL INTERROGATORY NO. 10:**

Responding Party objects to this interrogatory generally on the basis that it is not full and complete in and of itself as required by California Code of Civil Procedure § 2030.060. Pursuant to § 2030.060, no preface or instruction can be included with a set of interrogatories. Responding Party objects to this Request on the grounds that this request is vague and ambiguous as to the as to the phrase "approving". Responding Party also objects that this request is overbroad and burdensome in time and/or scope and therefore seeks information that is not reasonably related to lead to the discovery of admissible evidence. Responding Party objects to the extent this request seeks to invade

the attorney work product privilege, attorney client privilege and seeks information protected by Code of Civil Procedure § 2034.010 et seq.

Subject to and without waiving the above objections, Responding Party responds as follows: HOPE's treatment-completion criteria were drafted and revised with input and guidance from the California Sex Offender Management Board and HOPE's executive team (Kristine Hansen, Director of Quality and Compliance; Katie Palacios, Clinical Director; Cristina Loree, Executive Director of Training and Development; Dr. Carrie Shinske, Executive Director, Clinical Operations; Dr. Drew Kingston, Chief Clinical Officer).

**SPECIAL INTERROGATORY NO. 11:**

State all reasons HOPE determined that PLAINTIFF was not eligible for a treatment-completion determination at each CTM held during the RELEVANT PERIOD, separately for each CTM, and IDENTIFY all DOCUMENTS supporting each reason.

**RESPONSE TO SPECIAL INTERROGATORY NO. 11:**

Responding Party objects to this interrogatory generally on the basis that it is not full and complete in and of itself as required by California Code of Civil Procedure § 2030.060. Pursuant to § 2030.060, no preface or instruction can be included with a set of interrogatories. Responding Party objects to this Request on the grounds that this request is vague and ambiguous as to the as to the phrase "determined". Responding Party also objects that this request is overbroad and burdensome in time and/or scope and therefore seeks information that is not reasonably related to lead to the discovery of admissible evidence. Responding Party objects to the extent this request seeks to invade the attorney work product privilege, attorney client privilege and seeks information protected by Code of Civil Procedure § 2034.010 et seq. This request is also improper as it requires the adoption of an assumption, namely that HOPE determined that PLAINTIFF was not eligible for a treatment-completion determination at each CTM held during the RELEVANT PERIOD.

Subject to and without waiving the above objections, Responding Party responds as follows:

- August 22, 2022: Plaintiff had not completed Block I of treatment.
- February 19, 2023: Plaintiff had not completed Block I of treatment.
- August 21, 2023: Plaintiff had not completed Block I of treatment.

- February 29, 2024: Plaintiff had not completed Block I of treatment.
- August 20, 2024: Plaintiff had not completed Block I of treatment.
- February 18, 2025: Plaintiff had not completed Block I of treatment.
- August 19, 2025: Plaintiff had not completed Block I of treatment.
- February 18, 2026: Plaintiff had not completed Block II of treatment.

Documents evidencing this include Plaintiff's Progress Report & Treatment Plan Updates and the HOPE Program Curriculum Tracking.

**SPECIAL INTERROGATORY NO. 12:**

State all facts upon which YOU contend that the determination at each CTM that PLAINTIFF had not completed treatment was based on individualized clinical judgment of PLAINTIFF rather than on a general policy applicable to all parolees.

**RESPONSE TO SPECIAL INTERROGATORY NO. 12:**

Responding Party objects to this interrogatory generally on the basis that it is not full and complete in and of itself as required by California Code of Civil Procedure § 2030.060. Pursuant to § 2030.060, no preface or instruction can be included with a set of interrogatories. Responding Party objects to this Request on the grounds that this request is vague and ambiguous as to the as to the phrase "individualized clinical judgment." Responding Party also objects that this request is overbroad and burdensome in time and/or scope and therefore seeks information that is not reasonably related to lead to the discovery of admissible evidence. Responding Party further objects to the extent this request calls for a legal conclusion and/or expert opinion.

Subject to and without waiving the above objections, Responding Party responds as follows: HOPE's recommendations related to Plaintiff's treatment-completion were based on the individualized factors of his completion of the relevant curriculum and not based on "a generally policy applicable to all parolees."

**SPECIAL INTERROGATORY NO. 13:**

State whether HOPE modified, revised, or rescinded any policy, practice, or guideline relating to_treatment-completion determinations for parolees following: (a) the March 20, 2023 DWYER order; or (b) the April 17, 2025 effective date of 15 C.C.R. section 3574(f)(1). For each modification,

IDENTIFY the date, the responsible PERSON(s), and all DOCUMENTS reflecting the change.

**RESPONSE TO SPECIAL INTERROGATORY NO. 13:**

Responding Party objects to this interrogatory generally on the basis that it is not full and complete in and of itself as required by California Code of Civil Procedure § 2030.060. Pursuant to § 2030.060, no preface or instruction can be included with a set of interrogatories. Responding Party objects to this Request on the grounds that this request is vague and ambiguous as to the phrase "DWYER order". Responding Party also objects that this request is overbroad and burdensome in time and/or scope and therefore seeks information that is not reasonably related to lead to the discovery of admissible evidence. Responding Party further objects to the extent this request calls for a legal conclusion and/or expert opinion. Responding Party objects to the extent this request seeks to invade the attorney work product privilege, attorney client privilege and seeks information protected by Code of Civil Procedure § 2034.010 et seq. Responding Party also objects that this request is compound, conjunct, disjunct, and improperly joins multiple distinct inquiries into a single question, making it difficult to provide a complete and accurate response to each component.

Subject to and without waiving the above objections, Responding Party responds as follows: HOPE is not aware of either "the March 20, 2023, DWYER order" or "the April 17, 2025, effective dates of 15 C.C.R. section 3574(f)(1)." Prior to October of 2024, CDCR policy required supervised persons to continue some form of sex offender treatment as part of the "aftercare" phase of treatment until they were discharged from parole. CDCR amended that policy in October of 2024.

**SPECIAL INTERROGATORY NO. 14:**

State whether HOPE maintains in PLAINTIFF's clinical file a Treatment Completion Plan dated October 18, 2023, authored by a HOPE clinician identified as "Bernadette." If yes, state: (a) the full legal name and current employment status of "Bernadette"; (b) the date the document was created; (c) the dates of each subsequent revision, if any; (d) every PERSON who reviewed, signed, or approved the document; (e) every PERSON to whom a copy of the document has been provided; (f) whether and when the document was ever presented to PLAINTIFF for review, signature, acknowledgment, or input; and (g) the location of the original and all copies.

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**RESPONSE TO SPECIAL INTERROGATORY NO. 14:**

Responding Party objects to this interrogatory generally on the basis that it is not full and complete in and of itself as required by California Code of Civil Procedure § 2030.060. Pursuant to § 2030.060, no preface or instruction can be included with a set of interrogatories. Responding Party objects to this Request on the grounds that this request is vague and ambiguous as to the phrase "Treatment Completion Plan", and "Bernadette". Responding Party also objects that this request is overbroad and burdensome in time and/or scope and therefore seeks information that is not reasonably related to lead to the discovery of admissible evidence. Responding Party further objects to the extent this request calls for a legal conclusion and/or expert opinion. Responding Party objects to the extent this request seeks to invade the attorney work product privilege, attorney client privilege and seeks information protected by Code of Civil Procedure § 2034.010 et seq.

Subject to and without waiving the above objections, Responding Party responds as follows: No. Plaintiff's file does contain an Individualized Treatment Plan, created October 18, 2023, by Bernadette Marie Tassone. The document was provided to CDCR and has not been revised to HOPE's knowledge.

**SPECIAL INTERROGATORY NO. 15:**

Describe in detail HOPE's policies, practices, and procedures concerning when and how a parolee is presented with his or her Treatment Completion Plan for review, signature, or input, and IDENTIFY all DOCUMENTS reflecting those policies.

**RESPONSE TO SPECIAL INTERROGATORY NO. 15:**

Responding Party objects to this interrogatory generally on the basis that it is not full and complete in and of itself as required by California Code of Civil Procedure § 2030.060. Pursuant to § 2030.060, no preface or instruction can be included with a set of interrogatories. Responding Party objects to this Request on the grounds that this request is vague and ambiguous as to the phrase "presented" and "input". Responding Party also objects that this request is overbroad and burdensome in time and/or scope and therefore seeks information that is not reasonably related to lead to the discovery of admissible evidence.

Subject to and without waiving the above objections, Responding Party responds as follows:

HOPE does not have a document known as a "Treatment Completion Plan". HOPE does complete an Individualized Treatment Plan. That is completed at the request of CDCR, is transmitted to CDCR, and is the property of CDCR.

**INTERROGATORY NO. 16:**

Describe in detail every Mason-protocol progress review, structured progress assessment, or comparable validated risk-or-progress instrument administered to PLAINTIFF during the RELEVANT PERIOD, and for each such review state: (a) the date administered; (b) the administering clinician; (c) the score or result; (d) whether and when the review was presented to PLAINTIFF; and (e) the location of the original and all copies. If no such review was administered, state all reasons why not.

**RESPONSE TO INTERROGATORY NO. 16:**

Responding Party objects to this interrogatory generally on the basis that it is not full and complete in and of itself as required by California Code of Civil Procedure § 2030.060. Pursuant to § 2030.060, no preface or instruction can be included with a set of interrogatories. Responding Party objects to this Request on the grounds that this request is vague and ambiguous as to the phrase "Mason-protocol", "structured progress assessment", and "comparable validated risk-or-progress instrument". Responding Party also objects that this request is overbroad and burdensome in time and/or scope and therefore seeks information that is not reasonably related to lead to the discovery of admissible evidence. Responding Party also objects that this request is compound, conjunct and disjunct, and improperly joins multiple distinct inquiries into a single question, making it difficult to provide a complete and accurate response to each component.

Subject to and without waiving the above objections, Responding Party responds as follows: Responding Party has no knowledge of the meaning of "Mason-protocol progress review, structured progress assessment, or comparable validated risk-or-progress instrument" and, therefore, cannot answer this interrogatory as it is unintelligible.

**SPECIAL INTERROGATORY NO. 17:**

State HOPE's policy, practice, or position regarding the right of a HOPE participant to obtain copies of his or her own clinical records (including treatment plans, progress notes, Mason reviews,

and CTM submissions) directly from HOPE, and IDENTIFY all DOCUMENTS reflecting that policy. (This interrogatory is propounded in light of the position taken by HOPE staff member Janelle Aldana on May 4, 2026, that PLAINTIFF must request his own records through Parole Agent Long Moua rather than directly from HOPE.)

**RESPONSE TO SPECIAL INTERROGATORY NO. 17:**

Responding Party objects to this interrogatory generally on the basis that it is not full and complete in and of itself as required by California Code of Civil Procedure § 2030.060. Pursuant to § 2030.060, no preface or instruction can be included with a set of interrogatories. Responding Party objects to this Request on the grounds that this request is vague and ambiguous as to the phrase "Mason-protocol", "structured progress assessment", and "comparable validated risk-or-progress instrument". Responding Party also objects that this request is overbroad and burdensome in time and/or scope and therefore seeks information that is not reasonably related to lead to the discovery of admissible evidence. Responding Party also objects that this request is compound, conjunct and disjunct, and improperly joins multiple distinct inquiries into a single question, making it difficult to provide a complete and accurate response to each component.

Subject to and without waiving the above objections, Responding Party responds as follows: Clients are referred to HOPE by CDCR for specialized sex offender assessment and treatment. The results of that referral are reported back to CDCR. Such records are the sole property of CDCR. This is reflected in the Client Service Agreement.

**SPECIAL INTERROGATORY NO. 18:**

Describe in detail the procedure used by HOPE during the RELEVANT PERIOD to receive, log, scan, store, retain, and retrieve homework packets submitted by parolees at the STOCKTON FACILITY, including the name and version of any software, database, or physical filing system used.

**RESPONSE TO SPECIAL INTERROGATORY NO. 18:**

Responding Party objects to this interrogatory generally on the basis that it is not full and complete in and of itself as required by California Code of Civil Procedure § 2030.060. Pursuant to § 2030.060, no preface or instruction can be included with a set of interrogatories. Responding Party also objects that this request is overbroad and burdensome in time and/or scope and therefore seeks

information that is not reasonably related to lead to the discovery of admissible evidence.

Subject to and without waiving the above objections, Responding Party responds as follows: A client's chart contains a section that allows for a notation when homework is "assigned". When a client completes the homework and presents the homework at a group session, the client's chart contains a section that allows for a notation that the homework is "complete." The clinician documents that the client presented the homework assignment with that title of the homework and the effort that was put into this presentation by the client. Some clinicians may also scan a copy of a client's homework and upload this into the documents section of the client's file, which is completed on the electronic health record system utilized by HOPE called TreatAnyone.

**SPECIAL INTERROGATORY NO. 19:**

IDENTIFY every instance during the RELEVANT PERIOD in which HOPE lost, misplaced, destroyed, or was unable to locate a homework packet or assignment submitted by any parolee at the STOCKTON FACILITY, including by anonymized identifier (e.g., Client A) where confidentiality is asserted, and for each instance state the approximate date and the corrective action, if any, taken.

**RESPONSE TO SPECIAL INTERROGATORY NO. 19:**

Responding Party objects to this interrogatory generally on the basis that it is not full and complete in and of itself as required by California Code of Civil Procedure § 2030.060. Pursuant to § 2030.060, no preface or instruction can be included with a set of interrogatories. Responding Party objects to this Request on the grounds that this request is vague and ambiguous as to the phrase "homework packet." Responding Party also objects to this interrogatory on the grounds that it calls for information potentially in violation of third-party privacy rights guaranteed under the United States Constitution and Article I, Section I of the California Constitution. *See Younger v. Berkeley City Council* (1975) 45 Cal.App.3d 825, 832. Responding Party also objects that this request is overbroad and burdensome in time and/or scope and therefore seeks information that is not reasonably related to lead to the discovery of admissible evidence. Responding Party objects to the extent this request seeks to invade the attorney work product privilege, attorney client privilege and seeks information protected by Code of Civil Procedure § 2034.010 et seq.

Pursuant to the above stated objections, Responding Party cannot and will not respond.

**SPECIAL INTERROGATORY NO. 20:**

State all facts on which YOU base any characterization, contained in any FORM 3043, FORM 1502-DR, or other COMMUNICATION transmitted to CDCR/DAPO during the RELEVANT PERIOD, that PLAINTIFF "partially completed" homework packets, separately for each such characterization, and IDENTIFY all DOCUMENTS supporting each.

**RESPONSE TO SPECIAL INTERROGATORY NO. 20:**

Responding Party objects to this interrogatory generally on the basis that it is not full and complete in and of itself as required by California Code of Civil Procedure § 2030.060. Pursuant to § 2030.060, no preface or instruction can be included with a set of interrogatories. Responding Party objects to this Request on the grounds that this request is vague and ambiguous as to the term "transmitted." Responding Party also objects that this request is overbroad and burdensome in time and/or scope and therefore seeks information that is not reasonably related to lead to the discovery of admissible evidence. Responding Party further objects to the extent this request calls for a legal conclusion and/or expert opinion. Responding Party objects to the extent this request seeks to invade the attorney work product privilege, attorney client privilege and seeks information protected by Code of Civil Procedure § 2034.010 et seq.

Subject to and without waiving the above objections, Responding Party responds as follows:

In addition to the knowledge of the clinician involved in Plaintiff's treatment, that Plaintiff only "partially completed" homework packets is reflected in Plaintiff's Progress Report & Treatment Plan Updates and the HOPE Program Curriculum Tracking.

**SPECIAL INTERROGATORY NO. 21:**

State whether, at any time during the RELEVANT PERIOD, PALACIOS or any other HOPE employee stated in any group session, individual session, CTM, or other forum that HOPE "routinely loses client homework packets," or words to that effect. If yes, for each such statement state: (a) the date; (b) the speaker; (c) the substance of the statement; (d) the persons present; and (e) IDENTIFY all DOCUMENTS, recordings, or transcripts reflecting the statement.

**RESPONSE TO SPECIAL INTERROGATORY NO. 21:**

Responding Party objects to this interrogatory generally on the basis that it is not full and

complete in and of itself as required by California Code of Civil Procedure § 2030.060. Pursuant to § 2030.060, no preface or instruction can be included with a set of interrogatories. Responding Party also objects that this request is overbroad and burdensome in time and/or scope and therefore seeks information that is not reasonably related to lead to the discovery of admissible evidence. Responding Party further objects to the extent this request calls for a legal conclusion and/or expert opinion. Responding Party also objects that this request is compound and disjunct and improperly joins multiple distinct inquiries into a single question, making it difficult to provide a complete and accurate response to each component.

Subject to and without waiving the above objections, Responding Party responds as follows:

Not to Responding Party's knowledge.

**SPECIAL INTERROGATORY NO. 22:**

State whether, in or about June 2024, any HOPE clinician told PLAINTIFF, in substance, that no homework completed by PLAINTIFF had ever been found in HOPE's records, and if yes: (a) IDENTIFY the speaker; (b) state the basis for that statement; (c) IDENTIFY each PERSON consulted by the speaker before making the statement (including PALACIOS); and (d) IDENTIFY all DOCUMENTS reflecting the consultation.

**RESPONSE TO SPECIAL INTERROGATORY NO. 22:**

Responding Party objects to this interrogatory generally on the basis that it is not full and complete in and of itself as required by California Code of Civil Procedure § 2030.060. Pursuant to § 2030.060, no preface or instruction can be included with a set of interrogatories. Responding Party objects to this Request on the grounds that this request is vague and ambiguous as to the phrase "any HOPE clinician".

Subject to and without waiving the above objections, Responding Party responds as follows:

Responding Party has no knowledge of any such occurrence.

**SPECIAL INTERROGATORY NO. 23:**

Describe in detail every contract, master service agreement, statement of work, fee schedule, or rate sheet, including all amendments and exhibits, between HOPE and CDCR (including DAPO) for the provision of SOMP services to parolees during the RELEVANT PERIOD, including the basis

on which HOPE is compensated (e.g., per parolee, per session, per CTM, per month), and IDENTIFY each such DOCUMENT.

**RESPONSE TO SPECIAL INTERROGATORY NO. 23:**

Responding Party objects to this interrogatory generally on the basis that it is not full and complete in and of itself as required by California Code of Civil Procedure § 2030.060. Pursuant to § 2030.060, no preface or instruction can be included with a set of interrogatories. Responding Party also objects that this request is overbroad and burdensome in time and/or scope and therefore seeks information that is not reasonably related to lead to the discovery of admissible evidence. Responding Party also objects that this request is compound, conjunct and disjunct, and improperly joins multiple distinct inquiries into a single question, making it difficult to provide a complete and accurate response to each component. Responding Party also objects to this interrogatory on the grounds that it seeks information protected by the constitutional right to privacy under Article I, section 1 of the California Constitution, including confidential financial, payroll, compensation, and/or personnel information concerning non-party employees. The interrogatory is not narrowly tailored, is overbroad as to time, scope, and persons covered, and seeks private information that is not directly relevant to the claims or defenses in this action. Plaintiff has not demonstrated a compelling need for disclosure sufficient to outweigh the affected privacy interests. Responding Party further objects that any disclosure of such information, if ordered, should be limited to information directly relevant to the claims and defenses, redacted as appropriate, subject to notice to affected employees if required, and governed by an appropriate protective order. Responding Party further objects to the extent the interrogatory seeks confidential trade secret, proprietary, financial, or competitively sensitive information, including but not limited to internal business operations, payroll practices, compensation structure, revenue, profit, expenses, or other financial data. Any disclosure of such information, if ordered, should be subject to an appropriate protective order and limited to information directly relevant to the claims and defenses in this action.

Based on the above stated objections, Responding Party cannot and will not respond.

**SPECIAL INTERROGATORY NO. 24:**

State, for each calendar year during the RELEVANT PERIOD, the total revenue HOPE

received from CDCR/DAPO attributable to PLAINTIFF's enrollment, broken down by category (e.g., group sessions, individual sessions, CTMs, intake, aftercare), and IDENTIFY all DOCUMENTS reflecting that revenue.

**RESPONSE TO SPECIAL INTERROGATORY NO. 24**

Responding Party objects to this interrogatory generally on the basis that it is not full and complete in and of itself as required by California Code of Civil Procedure § 2030.060. Pursuant to § 2030.060, no preface or instruction can be included with a set of interrogatories. Responding Party also objects that this request is overbroad and burdensome in time and/or scope and therefore seeks information that is not reasonably related to lead to the discovery of admissible evidence. Responding Party also objects that this request is compound, conjunct and disjunct, and improperly joins multiple distinct inquiries into a single question, making it difficult to provide a complete and accurate response to each component. Responding Party also objects to this interrogatory on the grounds that it seeks information protected by the constitutional right to privacy under Article I, section 1 of the California Constitution, including confidential financial, payroll, compensation, and/or personnel information concerning non-party employees. The interrogatory is not narrowly tailored, is overbroad as to time, scope, and persons covered, and seeks private information that is not directly relevant to the claims or defenses in this action. Plaintiff has not demonstrated a compelling need for disclosure sufficient to outweigh the affected privacy interests. Responding Party further objects that any disclosure of such information, if ordered, should be limited to information directly relevant to the claims and defenses, redacted as appropriate, subject to notice to affected employees if required, and governed by an appropriate protective order. Responding Party further objects to the extent the interrogatory seeks confidential trade secret, proprietary, financial, or competitively sensitive information, including but not limited to internal business operations, payroll practices, compensation structure, revenue, profit, expenses, or other financial data. Any disclosure of such information, if ordered, should be subject to an appropriate protective order and limited to information directly relevant to the claims and defenses in this action.

Based on the above stated objections, Responding Party cannot and will not respond.

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**SPECIAL INTERROGATORY NO. 25:**

State, for each calendar year during the RELEVANT PERIOD, the total revenue HOPE received from CDCR/DAPO attributable to all parolees enrolled at the STOCKTON FACILITY, and the average annual revenue per retained parolee.

**RESPONSE TO SPECIAL INTERROGATORY NO. 25:**

Responding Party objects to this interrogatory generally on the basis that it is not full and complete in and of itself as required by California Code of Civil Procedure § 2030.060. Pursuant to § 2030.060, no preface or instruction can be included with a set of interrogatories. Responding Party also objects that this request is overbroad and burdensome in time and/or scope and therefore seeks information that is not reasonably related to lead to the discovery of admissible evidence. Responding Party also objects that this request is compound, conjunct and disjunct, and improperly joins multiple distinct inquiries into a single question, making it difficult to provide a complete and accurate response to each component. Responding Party also objects to this interrogatory on the grounds that it seeks information protected by the constitutional right to privacy under Article I, section 1 of the California Constitution, including confidential financial, payroll, compensation, and/or personnel information concerning non-party employees. The interrogatory is not narrowly tailored, is overbroad as to time, scope, and persons covered, and seeks private information that is not directly relevant to the claims or defenses in this action. Plaintiff has not demonstrated a compelling need for disclosure sufficient to outweigh the affected privacy interests. Responding Party further objects that any disclosure of such information, if ordered, should be limited to information directly relevant to the claims and defenses, redacted as appropriate, subject to notice to affected employees if required, and governed by an appropriate protective order. Responding Party further objects to the extent the interrogatory seeks confidential trade secret, proprietary, financial, or competitively sensitive information, including but not limited to internal business operations, payroll practices, compensation structure, revenue, profit, expenses, or other financial data. Any disclosure of such information, if ordered, should be subject to an appropriate protective order and limited to information directly relevant to the claims and defenses in this action.

Based on the above stated objections, Responding Party cannot and will not respond.

**SPECIAL INTERROGATORY NO. 26:**

Describe in detail every form of compensation, bonus, commission, performance-based pay, profit-sharing, or other incentive paid or available to PALACIOS or to any other Site Director or supervisory clinician at the STOCKTON FACILITY during the RELEVANT PERIOD that was based, in whole or in part, on (a) client census; (b) client retention duration; (c) number of sessions delivered; (d) revenue or profit generated; or (e) any comparable metric.

**RESPONSE TO SPECIAL INTERROGATORY NO. 26:**

Responding Party objects to this interrogatory generally on the basis that it is not full and complete in and of itself as required by California Code of Civil Procedure § 2030.060. Pursuant to § 2030.060, no preface or instruction can be included with a set of interrogatories. Responding Party also objects that this request is overbroad and burdensome in time and/or scope and therefore seeks information that is not reasonably related to lead to the discovery of admissible evidence. Responding Party also objects that this request is compound, conjunct and disjunct, and improperly joins multiple distinct inquiries into a single question, making it difficult to provide a complete and accurate response to each component. Responding Party also objects to this interrogatory on the grounds that it seeks information protected by the constitutional right to privacy under Article I, section 1 of the California Constitution, including confidential financial, payroll, compensation, and/or personnel information concerning non-party employees. The interrogatory is not narrowly tailored, is overbroad as to time, scope, and persons covered, and seeks private information that is not directly relevant to the claims or defenses in this action. Plaintiff has not demonstrated a compelling need for disclosure sufficient to outweigh the affected privacy interests. Responding Party further objects that any disclosure of such information, if ordered, should be limited to information directly relevant to the claims and defenses, redacted as appropriate, subject to notice to affected employees if required, and governed by an appropriate protective order. Responding Party further objects to the extent the interrogatory seeks confidential trade secret, proprietary, financial, or competitively sensitive information, including but not limited to internal business operations, payroll practices, compensation structure, revenue, profit, expenses, or other financial data. Any disclosure of such information, if ordered, should be subject to an appropriate protective order and limited to information directly

relevant to the claims and defenses in this action.

Based on the above stated objections, Responding Party cannot and will not respond.

**SPECIAL INTERROGATORY NO. 27:**

State whether HOPE's revenue attributable to a parolee participant decreases upon that parolee's treatment-completion determination or discharge from the program. If yes, describe the magnitude and timing of the decrease.

**RESPONSE TO SPECIAL INTERROGATORY NO. 27:**

Responding Party objects to this interrogatory generally on the basis that it is not full and complete in and of itself as required by California Code of Civil Procedure § 2030.060. Pursuant to § 2030.060, no preface or instruction can be included with a set of interrogatories. Responding Party objects to this Request on the grounds that this request is vague and ambiguous as to the term "magnitude." Responding Party also objects that this request is overbroad and burdensome in time and/or scope and therefore seeks information that is not reasonably related to lead to the discovery of admissible evidence. Responding Party objects to the extent this request seeks to invade the attorney work product privilege, attorney client privilege and seeks information protected by Code of Civil Procedure § 2034.010 et seq.

Subject to and without waiving the above objections, Responding Party responds as follows:

When a client discharges from the program, HOPE would no longer provide treatment-related services for that client and thus would not receive further compensation for services related to that client.

**SPECIAL INTERROGATORY NO. 28:**

State the date HOPE first became aware of the DWYER decision and IDENTIFY the manner in which HOPE learned of it. (PLAINTIFF notes that HOPE's own Executive Director of Clinical Training, Dr. Cristina Loree, testified in DWYER on or before March 20, 2023.)

**RESPONSE TO SPECIAL INTERROGATORY NO. 28:**

Responding Party objects to this interrogatory generally on the basis that it is not full and complete in and of itself as required by California Code of Civil Procedure § 2030.060. Pursuant to § 2030.060, no preface or instruction can be included with a set of interrogatories. Responding Party

objects to this Request on the grounds that this request is vague and ambiguous as to the phrase "aware" and "learned". Responding Party also objects that this request is overbroad and burdensome in time and/or scope and therefore seeks information that is not reasonably related to lead to the discovery of admissible evidence. Responding Party objects to the extent this request seeks to invade the attorney work product privilege, attorney client privilege and seeks information protected by Code of Civil Procedure § 2034.010 et seq.

Subject to and without waiving the above objections, Responding Party responds as follows:

HOPE has no knowledge of the "DWYER decision".

**SPECIAL INTERROGATORY NO. 29:**

State the date PALACIOS first became aware of the DWYER decision and IDENTIFY the manner in which PALACIOS learned of it.

**RESPONSE TO SPECIAL INTERROGATORY NO. 29:**

Responding Party objects to this interrogatory generally on the basis that it is not full and complete in and of itself as required by California Code of Civil Procedure § 2030.060. Pursuant to § 2030.060, no preface or instruction can be included with a set of interrogatories. Responding Party objects to this Request on the grounds that this request is vague and ambiguous as to the phrase "aware" and "learned". Responding Party also objects that this request is overbroad and burdensome in time and/or scope and therefore seeks information that is not reasonably related to lead to the discovery of admissible evidence. Responding Party further objects to the extent this request calls for a legal conclusion and/or expert opinion. Responding Party objects to the extent this request seeks to invade the attorney work product privilege, attorney client privilege and seeks information protected by Code of Civil Procedure § 2034.010 et seq.

Subject to and without waiving the above objections, Responding Party responds as follows:

To Responding Party's knowledge, PALACIOS is not "aware of the DWYER decision".

**SPECIAL INTERROGATORY NO. 30:**

Describe in detail every action HOPE took, if any, after becoming aware of the DWYER decision to review, modify, or discontinue the BLANKET RETENTION POLICY, and IDENTIFY all DOCUMENTS reflecting such actions.

**RESPONSE TO SPECIAL INTERROGATORY NO. 30:**

Responding Party objects to this interrogatory generally on the basis that it is not full and complete in and of itself as required by California Code of Civil Procedure § 2030.060. Pursuant to § 2030.060, no preface or instruction can be included with a set of interrogatories. Responding Party objects to this Request on the grounds that this request is vague, ambiguous and unintelligible as to the phrase "DWYER decision" and "BLANKET RETENTION POLICY". Responding Party also objects that this request is overbroad and burdensome in time and/or scope and therefore seeks information that is not reasonably related to lead to the discovery of admissible evidence. Responding Party objects to the extent this request seeks to invade the attorney work product privilege, attorney client privilege and seeks information protected by Code of Civil Procedure § 2034.010 et seq. Responding Party further objects to the extent this request calls for a legal conclusion and/or expert opinion. Responding Party also objects that this request is compound and conjunct, and improperly joins multiple distinct inquiries into a single question, making it difficult to provide a complete and accurate response to each component. Responding Party objects to this interrogatory on the basis that it includes impermissible subparts and is compound, in violation of California Code of Civil Procedure § 2030.060(f) that no interrogatory "shall contain subparts, or a compound, conjunctive, or disjunctive question."

Subject to and without waving objections and using Responding Party's own understanding of the referenced terms, Responding Party responds as follows:

Responding Party is not aware of "the DWYER decision" or a "BLANKET RETENTION POLICY".

**SPECIAL INTERROGATORY NO. 31:**

Describe in detail every action HOPE took, if any, after April 17, 2025 (the effective date of 15 C.C.R. § 3574(f)(1)) to bring HOPE's policies into compliance with the regulation's requirement that "treatment completion and parole discharge are legally separate decisions," and IDENTIFY all DOCUMENTS reflecting such actions.

**RESPONSE TO SPECIAL INTERROGATORY NO. 31:**

Responding Party objects to this interrogatory generally on the basis that it is not full and

complete in and of itself as required by California Code of Civil Procedure § 2030.060. Pursuant to § 2030.060, no preface or instruction can be included with a set of interrogatories. Responding Party objects to the extent this request calls for a legal conclusion and/or expert opinion. Responding Party also objects that this request is overbroad and burdensome in time and/or scope and therefore seeks information that is not reasonably related to lead to the discovery of admissible evidence. Responding Party objects to the extent this request seeks to invade the attorney work product privilege, attorney client privilege and seeks information protected by Code of Civil Procedure § 2034.010 et seq. This request is also improper as it requires the adoption of an assumption, namely that HOPE policies had to be brought "into compliance". Responding Party objects to this interrogatory on the grounds that it is vague and ambiguous as to the terms "action", "polices", and "compliance".

Subject to and without waving objections and using Responding Party's own understanding of the referenced terms, Responding Party responds as follows:

This interrogatory is unintelligible as phrased and cannot be answered.

**SPECIAL INTERROGATORY NO. 32:**

IDENTIFY every PERSON present at the August 2025 CTM held at a CDCR parole office in Stockton concerning PLAINTIFF (referenced in FAC ¶ 24).

**RESPONSE TO SPECIAL INTERROGATORY NO. 32:**

Responding Party objects to this interrogatory generally on the basis that it is not full and complete in and of itself as required by California Code of Civil Procedure § 2030.060. Pursuant to § 2030.060, no preface or instruction can be included with a set of interrogatories. Subject to and without waving objections and using Responding Party's own understanding of the referenced terms, Responding Party responds as follows:

Responding Party believes Plaintiff, Katie Palacios, Parole Agent Derrick, and Assistant Unit Supervisor Gary Noguchi attended the August 2025 CTM.

**SPECIAL INTERROGATORY NO. 33:**

State, verbatim or in substance, every statement made by PALACIOS at the August 2025 CTM concerning PLAINTIFF's behavior, attitude, demeanor, or alleged disruption, including but not limited to any statements that PLAINTIFF was "disruptive," a "ringleader," "abhorrent," "often

disrespectful," or that his demeanor was an "acting job," or words to that effect; and for each statement state all facts supporting it and IDENTIFY all DOCUMENTS supporting it.

**RESPONSE TO SPECIAL INTERROGATORY NO. 33:**

Responding Party objects to this interrogatory generally on the basis that it is not full and complete in and of itself as required by California Code of Civil Procedure § 2030.060. Pursuant to § 2030.060, no preface or instruction can be included with a set of interrogatories. Responding Party objects to the extent this request calls for a legal conclusion and/or expert opinion. Responding Party also objects that this request is overbroad and burdensome in time and/or scope and therefore seeks information that is not reasonably related to lead to the discovery of admissible evidence. Responding Party objects to the extent this request seeks to invade the attorney work product privilege, attorney client privilege and seeks information protected by Code of Civil Procedure § 2034.010 et seq. Responding Party objects to this interrogatory on the basis that it includes impermissible subparts and is compound, in violation of California Code of Civil Procedure § 2030.060(f) that no interrogatory "shall contain subparts, or a compound, conjunctive, or disjunctive question."

Subject to and without waving objections and using Responding Party's own understanding of the referenced terms, Responding Party responds as follows:

Responding Party has no knowledge of the alleged statements attributed to PALACIOS.

**SPECIAL INTERROGATORY NO. 34:**

IDENTIFY every complaint, grievance, objection, request, or other protected expression of concern made by PLAINTIFF prior to August 2025 to HOPE or to PALACIOS regarding (a) HOPE's retention policy; (b) loss or mishandling of homework records; (c) clinician turnover; (d) phase progression; (e) treatment completion; or (f) any other aspect of HOPE's program, and IDENTIFY all DOCUMENTS reflecting each.

**RESPONSE TO SPECIAL INTERROGATORY NO. 34:**

Responding Party objects to this interrogatory generally on the basis that it is not full and complete in and of itself as required by California Code of Civil Procedure § 2030.060. Pursuant to § 2030.060, no preface or instruction can be included with a set of interrogatories. Responding Party further objects to this interrogatory on the basis that it includes impermissible subparts and is

compound in violation of California Code of Civil Procedure § 2030.060(f) that no interrogatory "shall contain subparts, or a compound, conjunctive, or disjunctive question." Responding Party objects to this interrogatory on the grounds that it is vague and ambiguous as to the terms "complaint," "grievance," "objection," "request," and "other protected expression of concern".

Subject to and without waving objections and using Responding Party's own understanding of the referenced terms, Responding Party responds as follows:

Responding Party has no knowledge of such alleged statements.

**SPECIAL INTERROGATORY NO. 35:**

State all facts upon which YOU base any contention that the statements identified in response to Interrogatory No. 33 were made for clinical, rather than retaliatory, purposes, and IDENTIFY all DOCUMENTS supporting that contention.

**RESPONSE TO SPECIAL INTERROGATORY NO. 35:**

Responding Party objects to this interrogatory generally on the basis that it is not full and complete in and of itself as required by California Code of Civil Procedure § 2030.060. Pursuant to § 2030.060, no preface or instruction can be included with a set of interrogatories. Responding Party further objects to this interrogatory on the basis that it includes impermissible subparts and is compound in violation of California Code of Civil Procedure § 2030.060(f) that no interrogatory "shall contain subparts, or a compound, conjunctive, or disjunctive question." Responding Party objects to this interrogatory on the grounds that it is vague and ambiguous as to the terms "complaint," "grievance," "objection," "request," and "other protected expression of concern".

Subject to and without waving objections and using Responding Party's own understanding of the referenced terms, Responding Party responds as follows:

Responding Party has no knowledge of the alleged statements attributed to PALACIOS.

**SPECIAL INTERROGATORY NO. 36:**

State all information HOPE possessed at any time during the RELEVANT PERIOD concerning PLAINTIFF's status as a Class A Commercial Driver's License ("CDL") holder, including the date HOPE first learned of that status and IDENTIFY each DOCUMENT reflecting that knowledge.

**RESPONSE TO SPECIAL INTERROGATORY NO. 36:**

Responding Party objects to this interrogatory generally on the basis that it is not full and complete in and of itself as required by California Code of Civil Procedure § 2030.060. Pursuant to § 2030.060, no preface or instruction can be included with a set of interrogatories. Responding Party also objects to this interrogatory as overbroad insofar as it requests "all information HOPE possessed at any time". Responding Party further objects to this interrogatory on the basis that it includes impermissible subparts and is compound in violation of California Code of Civil Procedure § 2030.060(f) that no interrogatory "shall contain subparts, or a compound, conjunctive, or disjunctive question."

Subject to and without waving objections and using Responding Party's own understanding of the referenced terms, Responding Party responds as follows:

Responding Party does not believe it possessed information concerning PLAINTIFF's status as a Class A Commercial Driver's License ("CDL") holder.

**SPECIAL INTERROGATORY NO. 37:**

IDENTIFY every COMMUNICATION between PLAINTIFF and any HOPE employee during the RELEVANT PERIOD in which PLAINTIFF (a) disclosed his CDL status; (b) disclosed any specific commercial-trucking employer or assignment (including United Road, Keurig Dr Pepper, Tiger Lines LLC, US-1 Shorthaul, Lazer Spot, Inc., or Centerline Drivers); (c) requested any schedule accommodation; or (d) reported any conflict between HOPE's mandatory schedule and his CDL employment.

**RESPONSE TO SPECIAL INTERROGATORY NO. 37:**

Responding Party objects to this interrogatory generally on the basis that it is not full and complete in and of itself as required by California Code of Civil Procedure § 2030.060. Pursuant to § 2030.060, no preface or instruction can be included with a set of interrogatories. Responding Party also objects to this interrogatory as overbroad insofar as it requests "every COMMUNICATION between PLAINTIFF and any HOPE employee".

Subject to and without waving objections and using Responding Party's own understanding of the referenced terms, Responding Party responds as follows:

While it is possible Plaintiff communicated the alleged statements to an unidentified HOPE employee, Responding Party has no knowledge of Plaintiff's disclosure of CDL status and commercial-trucking employment.

**SPECIAL INTERROGATORY NO. 38:**

Describe in detail every accommodation, alternative schedule, telehealth option, or other modification HOPE offered or made available to PLAINTIFF during the RELEVANT PERIOD to accommodate his CDL employment obligations. If none was offered, state all reasons why not.

**RESPONSE TO SPECIAL INTERROGATORY NO. 38:**

Responding Party objects to this interrogatory generally on the basis that it is not full and complete in and of itself as required by California Code of Civil Procedure § 2030.060. Pursuant to § 2030.060, no preface or instruction can be included with a set of interrogatories. Responding Party objects to this interrogatory on the grounds that it is vague and ambiguous as to the terms "accommodation," "alternative schedule," "telehealth option," "other modification", and "CDL employment obligations".

Subject to and without waving objections and using Responding Party's own understanding of the referenced terms, Responding Party responds as follows:

Responding Party had no knowledge of Plaintiff's "CDL employment obligations."

**SPECIAL INTERROGATORY NO. 39:**

IDENTIFY every COMMUNICATION between any HOPE employee and any CDCR/DAPO parole agent (including without limitation Agents Magana, Arestad, Acierto, Urrea, Long Moua, Chow, Noguchi, and Derrick) during the RELEVANT PERIOD concerning PLAINTIFF's CDL status, his commercial-trucking employment, his missed sessions, his schedule conflicts, or any threatened or actual parole-violation consequence arising from missed HOPE sessions.

**RESPONSE TO SPECIAL INTERROGATORY NO. 39:**

Responding Party objects to this interrogatory generally on the basis that it is not full and complete in and of itself as required by California Code of Civil Procedure § 2030.060. Pursuant to § 2030.060, no preface or instruction can be included with a set of interrogatories. Responding Party

objects to this interrogatory on the basis that it includes impermissible subparts and is compound, in violation of California Code of Civil Procedure § 2030.060(f) that no interrogatory "shall contain subparts, or a compound, conjunctive, or disjunctive question." Responding Party also objects to this interrogatory as overbroad insofar as it requests "every COMMUNICATION between any HOPE employee and any CDCR/DAPO parole agent".

Subject to and without waving objections and using Responding Party's own understanding of the referenced terms, Responding Party responds as follows:

Responding Party cannot account for every communication between any HOPE employee and any CDCR/DAPO parole agent, however, Responding Party has no knowledge of such communications.

**SPECIAL INTERROGATORY NO. 40:**

State all facts upon which YOU contend that PLAINTIFF could have maintained full-time CDL employment, including long-haul assignments, while complying with HOPE's mandatory treatment schedule, attendance requirements, CTM attendance, and any related supervision conditions imposed in reliance on HOPE's reporting.

**RESPONSE TO SPECIAL INTERROGATORY NO. 40:**

Responding Party objects to this interrogatory generally on the basis that it is not full and complete in and of itself as required by California Code of Civil Procedure § 2030.060. Pursuant to § 2030.060, no preface or instruction can be included with a set of interrogatories. Responding Party further objects to this interrogatory as it improperly requires the adoption of an assumption and calls for speculation, specifically that HOPE contends "PLAINTIFF could have maintained full-time CDL employment, including long-haul assignments, while complying with HOPE's mandatory treatment schedule, attendance requirements, CTM attendance, and any related supervision conditions imposed in reliance on HOPE's reporting".

Subject to and without waving objections and using Responding Party's own understanding of the referenced terms, Responding Party responds as follows:

Responding Party has no knowledge of Plaintiff's "full-time CDL employment" nor an opinion on whether PLAINTIFF could, or could not, have maintained full-time CDL employment,

including long-haul assignments, while complying with his mandatory sex offender treatment and parole supervision conditions.

Dated: June 15, 2026

SIMS, LAWRENCE & BROGHAMMER

By: _____
CYNTHIA G. LAWRENCE
BRYAN L. MALONE
BLAZE VAN DINE
Attorneys for Defendants,
KATIE PALACIOS and
HOPE PROGRAM

**VERIFICATION**

***Newanforbi v. Palacios***

I, Carric Shinskc, statc and dcclarc:

I am the Executive Director, Clinical Operations of HOPE Program, A Licensed Clinical Social Worker Professional Corporation, a Defendant in the above entitled matter, and I am authorized to execute this Verification on its behalf. I have read the foregoing Responses to Plaintiff's First Set of Special Interrogatories and know the contents thereof. I am informed and believe, and on that ground, I allege the matters stated therein are true.

I declare under penalty of perjury under the laws of the United States of America that the foregoing is true and correct.

Executed at San Diego, California, on June 12, 2026.

Carrie Shinske (Jun 12, 2026 17:41:57 PDT)

CARRIE SHINSKE

# PROOF OF SERVICE

I, Kim Schmitt, certify and declare as follows:

I am over the age of 18 years, and not a party to this action. My business address is 1478 Stone Point Drive, Suite 450, Roseville, CA 95661. My business email is: kschmitt@sims-law.net. I am employed in the County of Placer where this service occurs.

On the date set forth below, following ordinary business practice, I served a true copy of the foregoing document(s) described as:

**DEFENDANT HOPE PROGRAM, A LICENSED CLINICAL SOCIAL WORKER PROFESSIONAL CORPORATION'S RESPONSES TO PLAINTIFF'S SPECIAL INTERROGATORIES, SET ONE**

☐ (BY MAIL) I am readily familiar with my employer's normal business practice for collection and processing of correspondence for mailing with the U.S. Postal Service. Correspondence so collected and processed is deposited with the U.S. Postal Service that same day in the ordinary course of business. I placed for deposit in the United States Postal Service in a sealed envelope, with postage fully prepaid, to the addressee(s) below.

☐ (BY PERSONAL SERVICE) I personally delivered the above document(s) by hand between 9:00 a.m. and 5:00 p.m. to the office of the addressee(s) below.

☐ (BY OVERNIGHT DELIVERY) I deposited in a box or other facility regularly maintained by Federal Express an express service carrier, or delivered to a courier or driver authorized by said express service carrier to receive such envelope(s) to be delivered by overnight delivery, with delivery fees paid or provided for, addressed to the person(s) on whom it is to be served below.

☒ (BY ELECTRONIC SERVICE) I transmitted via electronic service through electronic mail to the offices of the addressee(s) below as stated on the attached service list on this date before 5:00 p.m.

***SEE ATTACHED SERVICE LIST***

☒ (State) I certify and declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on: June 15, 2026

Kim Schmitt

## SERVICE LIST

| | |
|---|---|
| Brendan Ngehsi Newanforbi<br>Plaintiff, in Pro Per<br>1455 Cat Tail Drive<br>Stockton, CA 95204<br>(209) 801-4442<br>E: bnn.cdl@gmail.com | **PLAINTIFF, IN PER** |